

Table of Statutes referred to in this Act

Short Title	Session and Chapter
"An Act for regulating Covent Garden Market " (1813)	53 Geo. 3. c. lxxi.
" The Improvement Act " (1828)... ..	9 Geo. 4. c. cxiii.
Local Loans Act, 1875	38 & 39 Vict. c. 83.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Public Trustee Act, 1906	6 Edw. 7. c. 55.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Trustee Act, 1925	15 & 16 Geo. 5. c. 19.
Land Charges Act, 1925	15 & 16 Geo. 5. c. 22.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
Borrowing (Control and Guarantees) Act, 1946... ..	9 & 10 Geo. 6. c. 58.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Arbitration Act, 1950	14 Geo. 6. c. 27.
House of Commons Disqualification Act, 1957	5 & 6 Eliz. 2. c. 20.

CHAPTER 50

ARRANGEMENT OF SECTIONS

Control of pre-1951 discharges

Section

1. River board's consent for pre-1951 discharges.
2. Protection while applications are being dealt with.
3. Furnishing of information.

Exemption for discharges which comply with conditions

4. Protection for persons complying with conditions.

General provisions as to conditions and consents governing discharges and new outlets

5. Review and variation of conditions governing discharges and new outlets.
6. Appeals to Minister.
7. Other provisions relating to discharges and new outlets.

Miscellaneous and supplemental

8. Proceedings under section 2 of principal Act.
9. Estuaries and tidal waters.
10. Samples of effluent.
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12. Restriction of disclosure of information.
13. Interpretation and construction.
14. Financial provisions.
15. Short title, citation, extent, repeals and commencement.

SCHEDULES:

First Schedule—Statement to be included in consents and notices.

Second Schedule—Repeals.

An Act to make further provision for maintaining or restoring the wholesomeness of the rivers and other inland or coastal waters of England and Wales.

[27th July, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Control of pre-1951 discharges

River board's
consent for
pre-1951
discharges.

1.—(1) Subject to this Act, it shall be unlawful on and after the date appointed under this section to make a discharge of trade or sewage effluent to a stream, being a discharge which is not controlled under section seven of the principal Act, without the consent under this Act of the river board, which consent shall not be unreasonably withheld.

(2) Subsection (1) of this section shall not apply to the discharge of water raised or drained from any underground part of a mine into a stream in the same condition in which it is raised or drained from underground:

Provided that the Minister may by order (which shall be made by statutory instrument and may be varied or revoked by a subsequent order so made by him) direct that this subsection shall not apply to discharges into any specified stream or part of a stream.

(3) An application to the river board for their consent under this Act shall state—

- (a) the nature and composition of the effluent in respect of which the application is made,
- (b) the maximum temperature of the effluent at the time when it is to be discharged,
- (c) the maximum quantity of the effluent which it is proposed to discharge on any one day, and
- (d) the highest rate at which it is proposed to discharge the effluent.

(4) On an application for consent under subsection (1) of this section the river board may grant their consent subject to such conditions as they may reasonably impose, being conditions—

- (a) as to the nature and composition, temperature, volume or rate of discharge of effluent from the land or premises to which the application relates, and
- (b) as to the provision of facilities for taking samples of what is passing from the land or premises to the stream, and in particular as to the provision and maintenance of inspection chambers or manholes,

and any such conditions may be framed so as to have effect for a specified period, or for a period beginning or ending with a specified date.

(5) Subject to this Act, where on or after the date appointed under this section a discharge of trade or sewage effluent, being a discharge which is not controlled under section seven of the principal Act, nor exempted under subsection (2) of this section, is made to a stream without the consent under this Act of the river board, the river board may give to the person making the discharge a notice imposing any such conditions as they might have imposed on an application for their consent for making the discharge.

(6) No conditions imposed under this section shall take effect until the expiration of a period of three months beginning with the giving of the consent, or, as the case may be, the giving of the notice under subsection (5) of this section, and if before the expiration of the said period of three months a reference is made under this Act to the Minister in respect of the unreasonableness of any terms of the consent or notice, no conditions imposed under this section shall take effect until the reference to the Minister is withdrawn or determined.

(7) A person who contravenes subsection (1) of this section shall be liable—

(a) on conviction on indictment, to a fine, or

(b) on summary conviction, to a fine not exceeding one hundred pounds.

(8) No person shall cause or knowingly permit to enter a stream from land or premises in relation to which conditions have been imposed under this Act and are for the time being in force a trade or sewage effluent not complying with those conditions, and any person who does so shall be guilty of an offence punishable under section two of the principal Act.

(9) Section three of the principal Act shall apply in relation to the last foregoing subsection as it applies in relation to subsection (1) of section two of that Act.

(10) For the purposes of this section a discharge which is not controlled under section seven of the principal Act means a discharge of effluent in relation to which a river board has no power to impose conditions of the kinds described in paragraph (b) of subsection (2) of that section, that is to say, conditions imposed as respects the making of a new discharge, as defined in that section, with or without consent.

(11) The date appointed under this section shall be such date as the Minister may by order contained in a statutory instrument appoint, being a date not less than fourteen months after the passing of this Act, but applications for consent under this section may be made before that date and where consent is granted before that date subject to conditions, those conditions may, subject to subsection (6) of this section, take effect before that date.

Protection
while
applications
are being
dealt with.

2.—(1) If an application to the river board for their consent under this Act is duly made before the date appointed under section one of this Act (and the application is not disposed of before that date) then, until the application is disposed of,—

- (a) it shall not be an offence under subsection (1) of section one of this Act to make a discharge from the land or premises to which the application relates which is of the nature and composition specified in the application, and which does not, as respects temperature, volume and rate of discharge, exceed the amounts or limits specified in the application, and
- (b) no notice shall be given under subsection (5) of section one of this Act imposing any conditions as respects the making of any such discharge.

(2) If an application to the river board for their consent under this Act is duly made before the date appointed under section one of this Act, then, until the application is disposed of, it shall not be an offence under, or a contravention of—

- (a) paragraph (a) of subsection (1) of section two of the principal Act, or
- (b) any order under section three of the principal Act, or
- (c) section eight of the Salmon and Freshwater Fisheries Act, 1923, or
- (d) any byelaw under the Sea Fisheries Regulation Acts, 1888 to 1894, or
- (e) paragraph 32 of the Third Schedule to the Gas Act, 1948, or section sixty-eight of the Public Health Act, 1875 (which relate to pollution from gasworks),

to make a discharge from the land or premises to which the application relates which is of the nature and composition specified in the application, and which does not, as respects temperature, volume and rate of discharge, exceed the amounts or limits specified in the application.

(3) If it appears to the river board that the applicant has since the making of the application failed to make proper use of, or to repair or maintain, any purification plant through which the effluent was being passed at the time of the application, then, notwithstanding that any discharge made by him has complied with the requirements of the last foregoing subsection, a magistrates' court may, on the application of the river board, and if the court thinks fit, order that the exemption conferred by that subsection shall be withdrawn from the applicant.

(4) For the purposes of this section an application shall not be regarded as disposed of—

- (a) until the river board give their consent to the application, or give notice to the applicant that they refuse to give their consent, and

(b) until a further period of three months beginning with the giving of the consent, or of a notice refusing the consent, has expired,

and if before the expiration of the said period of three months a reference is made under this Act to the Minister in respect of the withholding of consent, or of the unreasonableness of any terms of the consent, the application shall not be regarded as disposed of until the reference to the Minister is withdrawn or determined.

3.—(1) The Minister may for the purpose of assisting river boards to obtain the information required by them to deal with applications for their consent under this Act by regulations contained in a statutory instrument prescribe the particulars which may, in accordance with the provisions of the next following subsection, be required of any applicant with regard to the effluents which have been or are being or are to be discharged from the land or premises to which the application relates. Furnishing of information.

(2) Any particulars prescribed under the foregoing subsection may be included in directions given by a river board under subsection (8) of section nine of the River Boards Act, 1948, to an applicant for their consent under this Act, and the proviso to the said subsection (8) (under which a person to whom directions are given under that subsection may make representations to the Minister on the ground that the directions are unreasonable or unduly onerous) shall not apply to any directions so far as they relate to the giving of particulars prescribed under the foregoing subsection.

(3) If a person who has applied for the river board's consent under this Act is convicted for failure to comply with directions given under the said subsection (8) requiring him to give information as to the discharge of effluents from the land or premises to which the application relates (whether or not the information consists of particulars prescribed under this section) and, on an application to a magistrates' court (which may be an application on the occasion of the conviction), it is shown to the satisfaction of the court that in consequence of the default the river board has not the material on which to decide the application, the court may if it thinks fit order that the exemption conferred by subsection (2) of the last foregoing section shall be withdrawn from the applicant.

Exemption for discharges which comply with conditions

4.—(1) The discharge of trade or sewage effluent to a stream in accordance with consent granted under this Act or section seven of the principal Act shall not constitute an offence under, or a contravention of— Protection for persons complying with conditions.

(a) paragraph (a) of subsection (1) of section two of the principal Act, or

- (b) any order under section three of the principal Act, or
- (c) section eight of the Salmon and Freshwater Fisheries Act, 1923, or
- (d) any byelaw under the Sea Fisheries Regulation Acts, 1888 to 1894, or
- (e) paragraph 32 of the Third Schedule to the Gas Act, 1948, or section sixty-eight of the Public Health Act, 1875,

and if conditions are imposed under this Act or section seven of the principal Act in relation to making a discharge, or a new discharge, for which the requisite consent has not been given, and are for the time being in force, the making of a discharge from the land or premises to which the conditions relate in compliance with the conditions shall not be an offence under, or a contravention of, any of those enactments.

(2) Paragraph (a) of subsection (1) of section five of the principal Act (under which byelaws may prescribe standards for the purpose of determining whether an effluent is polluting) shall cease to have effect.

*General provisions as to conditions and consents
governing discharges and new outlets*

Review and
variation of
conditions
governing
discharges
and new
outlets.

5.—(1) A river board shall from time to time review any condition having effect under this Act or under section seven of the principal Act (other than a condition to be satisfied before a discharge is made or an outlet is brought into use), and may give the person making the discharge or using the outlet, as the case may be, a notice making any reasonable variation of, or revoking, any such condition; and the Minister may, if he thinks fit so to do, direct the board to vary or revoke any such condition and, if the board fail within such period as the Minister may allow to give effect to any such direction, the Minister may himself give a notice as aforesaid.

(2) A statement in the form in the First Schedule to this Act shall be included among the terms of—

- (a) any consent having effect under this Act or under section seven of the principal Act, and
- (b) any notice given under subsection (5) of section one of this Act or under subsection (4) of section seven of the principal Act, and
- (c) any notice given under this section, other than a notice given with the consent in writing of the person to whom it is given,

being a consent taking effect, or a notice given, after the commencement of this Act, and the period specified in the statement shall be a reasonable period of not less than two years from the date on which the consent takes effect or the notice is given.

(3) No notice shall be given under subsection (1) of this section before the expiration of the period specified in the said statement except with the consent in writing of the person to whom the notice is given.

(4) Subsection (2) of this section shall not apply to a consent or notice which, in consequence of the temporary nature of the discharge to which it relates or for any other reason, will be spent within two years from the date on which the consent takes effect or the notice is given, and no notice shall be given under subsection (1) of this section varying the conditions of any such consent or notice except with the consent in writing of the person making the discharge.

(5) In this section references to varying a condition include references to substituting for any condition or conditions any one or more other conditions, and to imposing any new conditions; and references to reviewing a condition include references to reviewing any consent on which no condition has been imposed with a view to determining whether a condition should be imposed.

(6) Subsection (5) of section seven of the principal Act shall cease to have effect, but any notice given under that subsection shall have effect as if given under subsection (1) of this section.

6.—(1) Any question arising under this Act or section seven of the principal Act— **Appeals to Minister.**

(a) whether the consent of a river board has or has not been unreasonably withheld, or

(b) as to the unreasonableness of the terms of any consent or notice,

shall be determined for the purposes of this Act and the said section seven by the Minister in accordance with the provisions of this section.

(2) If at any time the river board give notice to an applicant for consent under this Act or section seven of the principal Act that they have refused consent, any reference to the Minister to determine whether the river board's consent has been unreasonably withheld must be made within three months from the giving of the notice.

(3) Any reference to the Minister in respect of the unreasonableness of the terms of any consent or notice must be made within three months from the giving of the consent or notice.

(4) If, on a reference to the Minister for him to determine a question under subsection (1) of this section, he determines that the withholding of consent, or as the case may be that anything in the terms of the consent or notice, was unreasonable, then—

- (a) where the reference was in respect of the withholding of consent, he may direct that the consent shall be treated as given either unconditionally or subject to such conditions as appear to him to be reasonable ;
- (b) where the reference was in respect of the unreasonableness of the terms of a consent, he may direct that there shall be substituted for the terms of the consent such other terms as appear to him to be reasonable ;
- (c) where the reference was in respect of the unreasonableness of the terms of a notice, he may direct either that the notice shall be treated as annulled or that there shall be substituted for the terms of the notice such other terms as appear to him to be reasonable,

but, without prejudice to the provisions of section one of this Act relating to the time when any conditions take effect, and without prejudice to section two of this Act, this Act and the said section seven shall apply as respects the period before the giving of the direction as if the withholding of consent or, as the case may be, the terms of the consent or notice had not been unreasonable.

(5) At any stage of the proceedings on a reference to the Minister under this section the Minister may, and if so directed by the High Court shall, state in the form of a special case for the decision of the High Court any question of law arising in those proceedings ; and the decision of the High Court on the special case shall be deemed to be a judgment of the Court within the meaning of section twenty-seven of the Supreme Court of Judicature (Consolidation) Act, 1925 (which relates to the jurisdiction of the Court of Appeal to hear and determine appeals on any judgment of the High Court), but no appeal to the Court of Appeal shall be brought by virtue of this subsection except with the leave of the High Court or the Court of Appeal.

(6) Subsections (10) and (11) of the said section seven shall cease to have effect, but any proceedings pending under those subsections at the commencement of this Act may be continued under this section.

Other
provisions
relating to
discharges
and new
outlets.

7.—(1) In subsection (13) and in subsection (16) of section seven of the principal Act (under which offences under those subsections are punishable on summary conviction by a fine not exceeding fifty pounds) for the words “ fifty pounds ” there shall, as respects any offence committed after the commencement of this Act, be substituted the words “ one hundred pounds ”.

(2) Every river board shall include in the register maintained by them under subsection (7) of section seven of the principal Act such particulars as the Minister may direct of any conditions which have been imposed under this Act in relation to land or premises in their area, and of the other terms included in pursuance of this Act in any consent or notice ; and paragraph (b)

of the said subsection (7) shall apply in relation to a person charged with an offence under this Act as it applies in relation to a person charged with an offence under that section.

(3) Any condition imposed under this Act or section seven of the principal Act shall continue in force (subject to any variation under this Act or the said section seven) until revoked under this Act, and shall be binding on any person discharging effluent from the land or premises or, as the case may be, using the outlet to which the condition relates.

(4) If the occupier of land or premises from which effluent passes or may pass to a stream by two or more ways meeting at the outlet, or a point short of the outlet, gives his consent for the purposes of this subsection, the power to impose conditions under this Act or section seven of the principal Act as to effluent discharged from the land or premises shall thereafter (and notwithstanding any change of occupation) include power to impose conditions as to the nature and composition, temperature, volume or rate of discharge of effluent passing in each or any of those ways separately.

A consent given for the purposes of this subsection shall be recorded in the register under subsection (7) of section seven of the principal Act but may be withdrawn by agreement with the river board or the Minister.

(5) Any conditions imposed under the said section seven may be framed so as to have effect for a specified period or for a period beginning or ending with a specified date.

Miscellaneous and supplemental

8.—(1) In paragraph (b) of subsection (7) of section two of the principal Act (under which an offence under that section is punishable by a fine not exceeding fifty pounds) for the words "fifty pounds" there shall, as respects any offence committed after the commencement of this Act, be substituted the words "one hundred pounds".

*Proceedings
under section
2 of principal
Act*

(2) Subsection (2) of section eight of the principal Act (under which the Minister's consent is needed for a prosecution under subsection (1) of section two of the principal Act, and for an application for an order under section three of that Act) shall cease to have effect.

(3) On the date appointed under section one of this Act, subsection (3) of section two of the principal Act (under which it is a defence to a prosecution under subsection (1) of that section to show that it was not reasonably practicable to dispose of the effluent in any other way) shall cease to have effect and, until that date, the proviso to that subsection (which suspends its operation for a certain period) shall not have effect.

**Estuaries and
tidal waters.**

9.—(1) Sections one to three of this Act shall apply to any tidal waters or parts of the sea to which any of the provisions of sections two to five of the principal Act for the time being apply (with or without modifications)—

(a) by virtue of an order made under section six of that Act, or

(b) by virtue of an order having effect as if made under that section by virtue of paragraph 9 of the Second Schedule to that Act (which relates to similar orders made under previous Acts)

as they apply to a stream, but as if, in relation to any tidal waters or parts of the sea to which the provisions of the said sections two to five, or any of them, are first applied at a time after the commencement of this Act, for references to the date appointed under section one of this Act there were substituted references to a date twelve months after that time or such earlier or later date as may be specified in the order applying the said provisions.

(2) In subsection (1) of section one of the Clean Rivers (Estuaries and Tidal Waters) Act, 1960 (which applies subsections (1) to (15) of section seven of the principal Act to controlled waters as defined in that Act), the reference to those subsections of the said section seven shall include a reference to this Act, other than sections one to three; and the said Act of 1960 shall apply to any such tidal waters or parts of the sea as are not controlled waters but are waters to which, at the commencement of this Act, any of the provisions of sections two to five of the principal Act apply by virtue of an order made, or having effect as if made, under section six of that Act as it applies to controlled waters.

(3) For the purposes of the application of this Act and section seven of the principal Act to any tidal waters or parts of the sea (including all controlled waters) the river board shall be the one whose area includes the land or premises from which the discharge in question is or is to be made, or, as the case may be, from which the effluent is or is to be discharged by means of the new or altered outlet in question.

(4) In performing any functions under this Act or the said section seven in relation to tidal waters or parts of the sea (including all controlled waters), a river board shall have special regard—

(a) to the interests of sea fisheries, and

(b) to the factors arising from the tidal nature of the waters and, in particular, to additional dilution due to dispersal of the effluent by tidal action, and the varying direction of flow and salinity and any other special properties of those waters.

(5) Any tidal waters or parts of the sea adjoining the coast of a river board area shall be deemed to be included in the expression "river, stream or inland water" for the purposes

of the river board's power under subsection (8) of section nine of the River Boards Act, 1948, to obtain information as to the discharge of effluents; and in subsection (5) of section one of the said Act of 1960 (under which controlled waters adjoining a river board area are to be treated as if they were included in that area for the purpose of the river board's power under section fifteen of the said Act of 1948 to take samples of effluents) the reference to the said section fifteen shall include a reference to subsection (8) of the said section nine.

(6) The Minister may by order direct that the said Act of 1960 shall apply to any tidal waters or parts of the sea specified in the order (not being controlled waters) as it applies to controlled waters:

Provided that, in the application of that Act by virtue of an order under this subsection, for the reference in subsection (4) of section one of that Act to its coming into force there shall be substituted a reference to the coming into force of the order.

(7) Subsections (2) to (6) of section six of the principal Act shall apply to any order under the last foregoing subsection.

(8) Subsection (17) of section seven of the principal Act shall cease to have effect; and for the reference to the last two subsections of the said section seven in sub-paragraph (2) of paragraph 5 of the Second Schedule to that Act (which applies sections two to eight of that Act, other than those subsections, to the Thames, Lee and London areas) there shall be substituted a reference to subsection (16) of the said section seven.

10.—(1) In any legal proceedings it shall be presumed, until the contrary is shown, that any sample of effluent taken at an inspection chamber or manhole or other place provided in compliance with a condition imposed under this Act or section seven of the principal Act in relation to any waters is a sample of what was passing from the land or premises to those waters. Samples of effluent.

(2) A river board may agree with the occupier of any land or premises from which effluent is discharged on the point or points at which, in exercise of the river board's rights under section fifteen of the River Boards Act, 1948, or under any other enactment, samples are to be taken of the effluent passing into any waters, and in any legal proceedings it shall be presumed, until the contrary is shown, that any sample of effluent taken at a point fixed under this section is a sample of what was passing from the land or premises to those waters.

(3) An agreement under the last foregoing subsection shall have effect in relation to the land or premises notwithstanding any change of occupation, but the river board or the occupier for the time being may at any time declare that it shall cease to have effect.

(4) In default of agreement under the foregoing provisions of this section, the river board may apply to the Minister and the

Minister may, after considering any representations made to him by the occupier of the land or premises and any other person who appears to the Minister to be interested, fix the point at which samples are to be taken ; and the Minister may from time to time on the application of the river board or the occupier of the land or premises review and vary any decision taken by him under this subsection.

(5) Every river board shall maintain a register containing such particulars as the Minister may direct of sampling points fixed under the foregoing provisions of this section, and the register shall be open to inspection at all reasonable hours by any person appearing to the river board to be interested.

(6) In subsection (2) of the said section fifteen (which provides that the result of an analysis of a sample taken under that section shall not be admissible as evidence unless certain requirements have been complied with) references to an analysis shall include references to any test of whatever kind and "analysed" and "analyst" shall be construed accordingly.

**Restriction on
proceedings.**

11.—(1) Subject to the principal Act, proceedings for any offence against that Act or the foregoing provisions of this Act—

(a) shall not be instituted except with the consent of the Attorney General or by a river board, and

(b) shall not be taken until the expiration of one month after notice has been given to the offender that the taking of such proceedings is being considered.

(2) Subsections (1) and (4) of section eight of the principal Act (which are superseded by the foregoing provisions of this section) shall cease to have effect and for the reference to the said subsection (1) in paragraph 10 of the Second Schedule to the principal Act (which saves the right of certain water undertakers to prosecute) there shall be substituted a reference to subsection (1) of this section.

**Restriction of
disclosure of
information.**

12.—(1) If any person discloses any information—

(a) which has been furnished to or obtained by him in connection with an application for consent, or the imposition of conditions, under this Act or the principal Act (including the variation of conditions, and references and applications to the Minister) ; or

(b) which is derived from a sample of effluent taken for the purposes of this Act or the principal Act,

he shall be guilty of an offence, unless the disclosure is made—

(i) with the consent of the person by whom the information was furnished or from whom it was obtained or, in the case of information derived from a sample of effluent, of the person making the discharge in question ; or

(ii) in connection with the execution of this Act or the principal Act ; or

(iii) for the purposes of any proceedings arising out of this Act or the principal Act (including references and applications to the Minister) or of any criminal proceedings whether so arising or not, or for the purpose of any report of any such proceedings.

(2) A person guilty of an offence under the foregoing subsection shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both.

(3) Nothing in this section shall prevent the disclosure of information derived from a sample of the waters into which an effluent is discharged.

13.—(1) In this Act “the principal Act” means the Rivers (Prevention of Pollution) Act, 1951.

Interpretation
and
construction.

(2) This Act shall be construed as one with the principal Act, and in sub-paragraph (2) of paragraph 5 of the Second Schedule to the principal Act the reference to sections two to eight of that Act shall include a reference to the provisions of this Act.

(3) Nothing in this Act or section seven of the principal Act shall be taken as applying to the discharge of effluent from a ship or vessel.

(4) Any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment.

14.—(1) There shall be paid out of money provided by Parliament any increase in the sums so payable under any Act other than this Act which is attributable to the provisions of this Act.

Financial
provisions.

(2) There shall be paid into the Exchequer any sums falling to be so paid in consequence of any of the provisions of this Act.

15.—(1) This Act may be cited as the Rivers (Prevention of Pollution) Act, 1961.

Short title,
citation,
extent, repeals
and com-
mencement.

(2) This Act and the Rivers (Prevention of Pollution) Acts, 1951 and 1960, may be cited together as the Rivers (Prevention of Pollution) Acts, 1951 to 1961.

(3) This Act shall not extend to Scotland or Northern Ireland.

(4) The Acts mentioned in the Second Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

(5) Save as otherwise expressly provided, this Act shall come into force at the expiration of two months beginning with the date on which it is passed.

SCHEDULES

Section 5.

FIRST SCHEDULE

STATEMENT TO BE INCLUDED IN CONSENTS AND NOTICES

The terms of this [consent] [notice] will not, without the consent in writing of the person to whom this [consent] [notice] is given (or his successor), be altered before the expiration of the period ending with the day of 19

Section 15.

SECOND SCHEDULE

REPEALS

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 6. c. 64.	The Rivers (Prevention of Pollution) Act, 1951.	In section two, subsection (3) as from the date appointed under section one of this Act. In section five,— in subsection (1), paragraph (a) and the words from “and before” to the end of the subsection; subsections (2) to (5). In section seven,— subsections (5) and (6); subsections (10) and (11); subsection (17). Section eight. In section eleven, in subsection (3), the words from the beginning to “five of this Act”. In the Second Schedule, in paragraph 9, the words “and section seven (except the two last subsections)” and in sub-paragraph (b) of paragraph 10, the words “and subsections (2) and (5) of section eight”. In section one, subsections (2) and (3) and paragraphs (b) and (d) of subsection (6).
8 & 9 Eliz. 2. c. 54.	The Clean Rivers (Estuaries and Tidal Waters) Act, 1960.	

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Public Health Act, 1875	38 & 39 Vict. c. 55.
Salmon and Freshwater Fisheries Act, 1923	13 & 14 Geo. 5. c. 16.
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
River Boards Act, 1948	11 & 12 Geo. 6. c. 32.
Gas Act, 1948	11 & 12 Geo. 6. c. 67.
Rivers (Prevention of Pollution) Act, 1951	14 & 15 Geo. 6. c. 64.
Clean Rivers (Estuaries and Tidal Waters) Act, 1960	8 & 9 Eliz. 2. c. 54.